

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

None

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ban the use of tire-derived materials in playgrounds and playing fields in
Massachusetts.

PETITION OF:

NAME:

Tracy Stewart

DISTRICT/ADDRESS:

SENATE No.

A petition (accompanied by bill) of Tracy Stewart, for legislation to ban the use of tire-derived materials in playgrounds and playing fields in Massachusetts.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ban the use of tire-derived materials in playgrounds and playing fields in Massachusetts.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. For the purposes of this act "Tire-derived materials" shall mean any
2 material derived from the processing of discarded tires, including but not limited to: tire crumb
3 rubber, ground tire rubber, shredded tires, rubberized asphalt, recycled tire chips, and tire-
4 derived aggregates.

5 "Playground" shall mean any area designed for children's play, including but not limited
6 to: Playgrounds in schools, parks, and residential areas; playgrounds in childcare facilities and
7 early childhood education centers;

8 "Playing field" shall mean any area used for athletic activities, including but not limited
9 to: sports fields for baseball, soccer, football, and other sports.

10 SECTION 2. No person shall install, construct, or maintain any playground or playing
11 field surface that contains tire-derived materials. This prohibition shall apply to both new and
12 existing playgrounds and playing fields.

13 SECTION 3. This act shall not apply to existing playground or playing field surfaces that
14 were installed prior to the effective date of this act.

15 SECTION 4. The Department of Environmental Protection shall be responsible for
16 enforcing the provisions of this act. The Department of Public Health shall provide guidance and
17 recommendations regarding safe surfacing materials for playgrounds and playing fields.

18 SECTION 5. If any provision of this act or its application to any person or circumstance
19 is held to be invalid, such invalidity shall not affect other provisions or applications 1 of this act
20 which can be given effect without the invalid provision or application.